



国外務省

特別な指示

PRIVILEGED INSTRUCTIONS

Ministry of Foreign Affairs
JAPAN



外務省

Ministry of Foreign Affairs of Japan

Privileged Instructions

Fundamental Principles:

- Restoration of peace and tranquility within the entire Southeast Asian region is an absolute necessity.
- Freedom of the High Seas is a fundamental right.
- Adherence to the tenets of the United Nations Convention of the Law of the Sea (UNCLOS) is an absolute necessity.

Desired End State(s):

- Adherence to the UNCLOS provisions regarding Freedom of Navigation and Right of Innocent Passage by all nations throughout the waters of the Western Pacific region.
- Peaceful resolution of South China Sea (SCS) sovereignty issues.
- Demilitarization of the SCS.
- Increased cooperation at all levels between all nations within the Western Pacific.
- Increased joint commercial ventures within the SCS and between all Western Pacific nations.

Principle Negotiation Positions

- Each nation must respect the sovereignty of all and their rights regarding coastal regions and Exclusive Economic Zones (EEZs), and verifiable claims to island entities.
- We must protect the ability of energy supplies to peacefully transit through the SCS.
- We support the Philippines and Vietnam against the overreach of China, the claims of all three states exceed the areas allowed under UNCLOS. Each party must provide credible and verifiable evidence to substantiate its claims to the UNCLOS tribunal and abide by the decisions/awards of that body.
- Issues/disagreements between nations are best resolved by peaceful multilateral negotiations and adherence to international agreements. The threat of economic sanctions, political censure, and possible military action must remain on the table as legitimate responses to illegal or aggressive acts by any nation.
- The involvement of third parties as “trusted partners” in multilateral negotiations can and must play an essential role in finding resolutions to the current problems.
- All negotiation partners external to the situation should seek to establish unified positions on all possible paths toward the resolution of this situation, as this will maximize our combined leverage in order to achieve mutually lasting results.
- If a unified position is not attainable, seek to assure the Philippines and Vietnam that we are supportive of their positions, but only insofar as they are in accordance with UNCLOS tenets. Any claims outside of those tenets must be negotiated under existing UNCLOS regimes.

- If a peaceful resolution is achieved, ensure that the maintenance of any settlements, and agreements thereof, are codified through the creation of a new SCS dialogue system within ASEAN or by the adoption of the bilateral and multilateral dialogue principles established within ASEAN.

Delegation Instructions

Ensure periodic reports, requests for further guidance, or clarifications to the instructions herein are submitted via message to the office of the Foreign Minister.

General: The freedom of navigation and overflight in the SCS must be guaranteed in the sea and airspace surrounding and above maritime features found to be low-tide elevations that do not have territorial sea and territorial airspace of their own. The SCS arbitration in 2016 stated this clearly and all parties are held to its decision. UNCLOS sets the conditions for the application of territorial sea baselines in specific and in an exclusive manner. There is no room for a party to justify their own application of baselines that do not satisfy the conditions clearly stated in UNCLOS.

China: While China has agreed to participate in these negotiations, it is not interested in a solution that impinges on its declared nine-dashed line boundary and its unfounded declaration that the SCS is a "Chinese archipelago." We expect the Chinese will talk about problems that exist, but it is unlikely that they will be open to proposals or compromises that might lead to lasting solutions. Chinese leaders play for time rather than compromise, for they see time as on their side.

Try to seek what short-term measures they are willing to accept or what compromises their delegation might be instructed to offer. Express in firm terms that their provocative acts, such as those in the Senkakus, cannot be allowed to continue. A peaceful resolution to all claims in the Western Pacific is of paramount importance to the maintenance of regional peace, security, and stability. Express to them that the exploitation of the energy resources of the SCS, and the right of innocent passage cannot be impinged by any nation. The constant threat of military actions for these routine commercial activities is unacceptable. Seek to discover if they are willing to agree to the emplacement of confidence building measures. Such measures might include coordinated joint patrols within disputed areas, joint cooperative energy exploration, the establishment of an SCS hotline between all SCS nations, or a multilateral agreement to cease any and all confrontational activities within the SCS (laying of buoys, placing of markers, land reclamation, etc.).

The Philippines and Vietnam: National pride and international respect are at stake for them both. It is now clear that ASEAN's inability to agree on a consistent position against China's increasingly aggressive acts has soured both Manila and Hanoi to the concept of regional multilateralism, especially in terms of altering the belligerent, overbearing behavior of their Chinese neighbor. Reassure both that we are supportive of their positions against China's nine-dashed line claim, insofar as their claims can be verified under UNCLOS. Seek their positions on the establishment of the same confidence building measures we propose discussing with the Chinese delegation.

While we favor the continuance and strengthening of ASEAN, as the primary conduit for regional problem-solving efforts, reassure them that as a trusted partner, we are ready to act as an intermediary between both and the Chinese delegation, if they so desire. Seek to ascertain from each delegation what their specific objectives are for these negotiations, and if there is any common ground where we might be of assistance. Suggest that we might look to establish a unified position with the United States to buttress the ASEAN nations and ascertain whether that is something that they would welcome. If not, ask what role they see for nations that do not have claims in the SCS.

Indonesia: While it is unlikely that either the Philippines or Vietnam would withdraw their membership, it is possible that ASEAN could be reduced to a purely economic grouping. In the past Jakarta maintained friendly and cooperative relations with Beijing. However, the Indonesian

government has aggressively protected its EEZ which has led to confrontation and seizures of Chinese fishing vessels. Explore where the Indonesian delegation and government are in terms of their overall relations with China, and if and how these incidents have affected their once cordial relations.

Make sure they understand that our long-term goal is to increase economic multilateralism within the Western Pacific so that peaceful resolutions take place as a natural extension of those relationships. Also emphasize that the unique make-up of ASEAN, as a group of disparate smaller nations (in comparison to China), have divergent philosophies and national interests. Inevitably, this leads to weakness in terms of unity of effort. Seek if Jakarta's relations with Beijing allow it to facilitate an immediate reduction in tensions through the confidence building measures we propose to all delegations. Aggressively press them to seek a compromise solution with China.

Brunei and Malaysia: As a founding members of ASEAN, it is undoubtedly incumbent upon them to convince all parties that regional multilateralism is a sound, effective method for the maintenance of regional peace and the development of a mutually supportive regional community. Failure to do so could begin the process of the unraveling of the ASEAN concept and its accomplishments to date. Emphasize support for ASEAN as the natural hub for regional problem solving. However, multilateralism will not always work in every situation. The unique make-up of ASEAN, as a group of disparate smaller nations (in comparison to China), have divergent philosophies and national interests. Inevitably, this leads to weakness in terms of unity of effort against a foe like China. Therefore, suggest their role should be to bring unqualified support to the Philippines and Vietnam. Suggest that they should use their cordial relations with Beijing to elicit commitments for an immediate reduction in tensions through the confidence building measures that we propose to all parties.

United States: In your talks with the US delegation, thank them for their continued commitment to security of the Japanese nation, and for maintaining a balance within the region. Emphasize their influence with all nations in the ongoing efforts to find a peaceful solution to this complex problem. Seek to establish common ground on the possibility to concentrate on the immediate implementation of the same confidence building measures we wish to discuss with the SCS nations. Point out that finding common ground between our two nations will only strengthen our mutual efforts in support of ASEAN states. Determine what actions, if any, within the SCS might provoke a US military response in support of their mutual defense treaty with the Philippines. Even though we agree the need for military preparedness and measured action as the situation requires, also emphasize the need for the preservation of peace and regional stability as the long-term goal.

India: Seek to enlist their support for a multilateral effort to gain concessions from all parties, especially from China. Seek to enlist their support for confidence building measures, as laid out above. As with your talks with the US, emphasize the need for a united front in our talks with the Chinese delegation, to include the threat of military force as a necessary component. Our continued military cooperation demonstrates our interoperability and willingness to work together. These exercises show our resolve to maintain a presence in the SCS to ensure the free flow of commerce.